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Case Number: 21STCV42024 Hearing Date: July 29, 2026 Dept: 732

Qasim Zaidi, et al. v. Los Angeles County Metropolitan Transit Authority., et al.

Wednesday, July 29, 2026

CASE NUMBER: 21STCV42024

OPPOSED

Defendants Los Angeles County Metropolitan Transit Authority and Walsh Shea Corridor Constructors' Motion to Augment Expert Witness Designation

Defendants Los Angeles County Metropolitan Transit Authority and Walsh Shea Corridor Constructors' Motion to Compel Deposition of Plaintiffs' Expert Jeff Hughes

Facts: This is an inverse condemnation action. The Complaint alleges as follows. Plaintiffs Qasim Zaidi, Michael Whitted, Carolawyn Smith, Sharon Barnes, Bernyesha Hollins, Dana Pharr, and Cassandra Thompsons (Plaintiffs) own real property within one mile of railway construction performed by Defendants Los Angeles County Metropolitan Transit Authority and Wash Shea Corridor Constructors (Defendants) for the Crenshaw/LAX Transit Corridor. (Complaint ¶¶ 16–17.) The structures on Plaintiffs' properties have been damaged and cracked by Defendants' construction. (Complaint ¶¶ 18–21.)

Procedural History: Plaintiffs filed the complaint on November 15, 2021, alleging three causes of action:

Negligence

Inverse Condemnation

Nuisance

On April 20, 2022, this court granted Anthony O. Egbase and Aliyah J. Guidry of A.O.E. Law & Associates' motion to be relieved as counsel for Plaintiff Dana Pharr.

On December 7, 2022, this court granted Defendant LACMTA's motions to compel responses to requests for production and interrogatories from Plaintiff Dana Pharr.

On January 19, 2023, this court granted Defendant's motion to inspect Dana Pharr's property.

On May 8, 2023, this court granted Defendant's motion for terminating sanctions against Plaintiff Dana Pharr.

On February 5, 2024, this court granted Plaintiff's motion to continue trial.

On March 14, 2025, this court granted in part Plaintiffs' motion to augment expert witness designation, permitting the addition of their proposed expert Hughes on the condition that Plaintiffs pay for depositions made necessary by the augmentation. The court also granted in part Defendant's motion to bifurcate trial, ruling that trial shall be divided into two phases, with the first phase addressed to the issue of liability on Plaintiffs' inverse liability claim, tried to the court in the presence of a jury. The second phase of trial will address Plaintiffs' compensation for the inverse condemnation claim, as well as Plaintiffs' other claims, tried to the same jury.

On August 20, 2025, the court denied Plaintiff's motion to consolidate.

Defendants filed the present motion to augment expert witness designation on June 24, 2026. Plaintiffs filed an opposition on July 8, 2026. Defendants filed a reply on July 22, 2026.

Defendants filed the present motion to compel deposition testimony of Jeff Hughes on July 7, 2026. Plaintiffs filed an untimely opposition on July 22, 2026. Defendants filed a reply and notice of non-opposition on July 22, 2026.

Analysis

MOTION TO AMEND EXPERT DESIGNATION

(a) On motion of any party who has engaged in a timely exchange of expert witness information, the court may grant leave to do either or both of the following:

(1) Augment that party's expert witness list and declaration by adding the name and address of any expert witness whom that party has subsequently retained.

(2) Amend that party's expert witness declaration with respect to the general substance of the testimony that an expert previously designated is expected to give.

(b) A motion under subdivision (a) shall be made at a sufficient time in advance of the time limit for the completion of discovery under Chapter 8 (commencing with Section 2024.010) to permit the deposition of any expert to whom the motion relates to be taken within that time limit. Under exceptional circumstances, the court may permit the motion to be made at a

later time.

(c) The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(Code Civ. Proc. 2034.610.)

The court shall grant leave to augment or amend an expert witness list or declaration only if all of the following conditions are satisfied:

(a) The court has taken into account the extent to which the opposing party has relied on the list of expert witnesses.

(b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.

(c) The court has determined either of the following:

(1) The moving party would not in the exercise of reasonable diligence have determined to call that expert witness or have decided to offer the different or additional testimony of that expert witness.

(2) The moving party failed to determine to call that expert witness, or to offer the different or additional testimony of that expert witness as a result of mistake, inadvertence, surprise, or excusable neglect, and the moving party has done both of the following:

(A) Sought leave to augment or amend promptly after deciding to call the expert witness or to offer the different or additional testimony.

(B) Promptly thereafter served a copy of the proposed expert witness information concerning the expert or the testimony described in Section 2034.260 on all other parties who have appeared in the action.

(Code Civ. Proc., § 2034.620, subd. (a)–(c).) Leave to augment must be conditioned on the moving party making the expert promptly available for deposition. (Code Civ. Proc. § 2034.620, subd. (d).)

Defendants Los Angeles County Metropolitan Transit Authority and Walsh Shea Corridor Constructors (“Defendants”) seek leave to augment their expert witness lists to replace two experts presently designated — Thomas Gillgren (“Gillgren”) and Mike Villalba (“Villalba”) — with new experts designated to testify to the same matters, Michael V. Saunders (“Saunders”) and Pete D. Fowler (“Fowler”).

Defendants argue that the replacements are necessary because Gillgren, originally designated to testify concerning appraisals, has indicated as of April 21, 2026, to Defendants’ counsel that he is undergoing major surgery requiring several months of recovery, and as of June 22, 2026, informed Defendants’ counsel that he would be medically retiring and unable to continue working on this matter. (Ebel Decl. ¶ 4.)

As to Villalba, Defendants contend that on May 28, 2026, they were informed that he would no longer be working at the firm (Peter Fowler Construction Services, Inc., or “PFCS”) through which he was retained. (Ebel Decl. ¶ 5.)

Defendants argue that Plaintiffs Qasim Zaidi, Michael Whitted, Carolawyn Smith, Sharon Barnes, Bernyesha Hollins, Dana Pharr, and Cassandra Thompkins (collectively "Plaintiffs") will not be prejudiced by permitting these replacements, because Plaintiffs never deposed Villalba, meaning they will not need to depose his replacement (Ebel Decl. ¶ 8), and because, although Plaintiffs deposed Gillgren, Defendants shall make Saunders immediately available for deposition. (Motion at p. 7.)

Plaintiffs in opposition argue that Defendants have produced insufficient evidence to show that Gillgren and Villalba are legally unavailable, as the motion includes only the secondhand testimony of Defendant's counsel. (Opposition at pp. 7–12.) Plaintiffs argue that they have substantially relied on Defendant's designations in preparing their case for trial and preparing their motions in limine. (Ibid.)

Plaintiffs' arguments are not persuasive as to Defendants' proposed replacement of Gillgren with Saunders. Defendants' counsel declares, "On June 22, 2026, counsel spoke with Gillgren, who confirmed that he is medically retiring and will be unable to continue working on this matter." (Ebel Decl. ¶ 4.) Regardless of whether Defendants present evidence concerning the facts of Gillgren's underlying illnesses, the testimony of counsel as to Gillgren's decision not to proceed with this matter is testimony concerning Gillgren's conduct that is admissible regardless of whether the underlying reasons are taken as true. (See Evid. Code § 1200.) This information was relayed on June 22, 2026, and the present motion was brought promptly thereafter. Defendants have thus complied with Code of Civil Procedure § 2034.620, subd. (c)(2).

Plaintiffs present reasonable arguments to the effect that they have relied on Gillgren's designation as an appraisal expert, and that they have accordingly deposed him and formulated trial strategy around his estimates. (Opposition at p. 10.) However, the prejudice to be suffered by allowing the substitution of Saunders does not extend to Plaintiffs' ability to maintain their action on the merits, but rather to the additional work and expense associated with Saunders' deposition and incorporating his analysis into their strategy. (Code Civ. Proc. § 2034.620, subd. (b).) The prejudice to be suffered is thus not much more than that associated with the augmentation of Plaintiffs' own expert witness list by this court's order of March 14, 2025. Such prejudice does not furnish a basis to deny the present motion, particularly in light of the absence of fault associated with the necessity of Gillgren's substitution.

However, Plaintiffs are correct that Defendants have not shown the necessity of Fowler's substitution for Villalba. The sole basis for seeking this substitution is the declaration of Defendants counsel, not that Villalba cannot or will not testify, but that on May 28, 2026, Defendants were informed that Villalba "would no longer be working at PFCS." (Ebel Decl. ¶ 5.) Defendants do not elaborate on the difficulty of retaining Villalba in reply, but argue, without authority, that his departure from the firm through which he was retained is a legitimate basis for seeking substitution. (Reply at pp. 2–3.) Defendants do not explain why Villalba's departure from PFCS renders him unable to testify, or why the prejudice to Defendants from procuring his testimony now that he has departed the firm justifies the prejudice to be suffered by Plaintiffs in accounting for a new expert. It is true enough that Plaintiffs do not describe great deal of prejudice resulting from Villalba's substitution, as they never deposed him, and cite only to one motion in limine in which they moved to exclude the testimony of another expert on the grounds that he failed to take measurements and relied on Villalba's estimates in forming his own opinions. (Opposition at pp. 7–8.) This is not a great deal of prejudice resulting from the proposed substitution. But Defendants do not present justification for this proposed substitution, and absent such explanation as to why Fowler's addition to the expert list is the result of mistake, inadvertence, surprise, or excusable neglect under Code of Civil Procedure § 2034.602, subd. (c)(2), the motion will not be granted to permit Fowler's substitution for Villalba.

Accordingly, the motion is GRANTED as to the substitution of Saunders for Gillgren, conditioned upon Defendants making Saunders promptly available for deposition. The motion is DENIED as to the proposed substitution of Fowler for Villalba.

MOTION TO COMPEL DEPOSITION

A party may make a motion compelling a witness's deposition "after service of a deposition notice" if that witness "fails to appear for examination, or to proceed with it." (Code Civ. Proc. § 2025.450, subd. (a).) The motion must include a meet-and-confer declaration and show good cause for the discovery sought. (Code Civ. Proc. § 2025.450, subd. (b)(1), (2).)

Defendants move to compel the continued deposition of Jeff Hughes, which was held in part on September 12, 2025, until it was terminated after four hours by Plaintiffs, on the contention that they were directed, per this court's order of March 14, 2025, to pay for only four hours of each deposition occasioned by Hughes' introduction into this matter as an expert. (Ebel Decl. ¶¶ 7–8, Exh. F.) Defendants contend that the deposition was stopped before Hughes could testify concerning the cost estimate for Plaintiff Sharon Barnes. (Ebel Decl. ¶ 14.)

Plaintiffs filed an opposition on July 22, 2026, a mere five court days before the hearing set on this motion, and thus untimely under Code of Civil Procedure § 1005, subd. (b), and depriving Defendants of a meaningful chance to respond. The argument asserted in this opposition is that Defendants have not been diligent in seeking a subsequent deposition under Code of Civil Procedure § 2025.610. Yet Defendants do not seek a subsequent deposition under that statute, but rather to compel deposition that was prematurely cut off under Code of Civil Procedure § 2025.450. Defendants present evidence that the deposition was stopped after four hours upon Plaintiffs' representation that they would not pay for more. But per the court's order of March 14, 2025, and the associated transcript of the hearing, Plaintiffs were directed to pay for the Hughes deposition without the four-hour limitation. (Se 3/14/2025; Ebel Decl. Exh. A at p. 29.) Defendants thus make a showing of good cause for the resumption of the deposition.

The motion to compel the deposition of Jeff Hughes is GRANTED. Said deposition shall resume within 20 days of this order.

Sanctions

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2025.450, subd. (e).)

Defendants seek \$2465.00 in sanctions, representing nine hours of attorney work at \$285.00 per hour. (Ebel Decl. ¶ 15.) No sanctions are awarded.

Superior Court of California

County of Los Angeles

Department 732

QASIM ZAIDI, et al.

Plaintiffs

v.

LOS ANGELES COUNTY METROPOLITAN TRANSIT AUTHORITY, et al.,

Defendants.

Case No.: 21STCV42024

Hearing Date: July 29, 2026

[TENTATIVE] RULING RE:

Defendants Los Angeles County Metropolitan Transit Authority and Walsh Shea Corridor Constructors' Motion to Augment Expert Witness Designation

Defendants Los Angeles County Metropolitan Transit Authority and Walsh Shea Corridor Constructors' Motion to Compel Deposition of Plaintiffs' Expert Jeff Hughes

Defendants Los Angeles County Metropolitan Transit Authority and Walsh Shea Corridor Constructors' Motion to Augment Expert Witness Designation is GRANTED as to the substitution of Saunders for Gillgren, conditioned upon Defendants making Saunders promptly available for deposition. The motion is DENIED as to the proposed substitution of Fowler for Villalba.

Defendants Los Angeles County Metropolitan Transit Authority and Walsh Shea Corridor Constructors' Motion to Compel Deposition of Plaintiffs' Expert Jeff Hughes is GRANTED. Hughes' deposition shall resume within 20 days of this order. No sanctions are awarded.

Plaintiffs to give notice.

Dated: July 29, 2026

Hon. Lynne Hobbs

Judge of the Superior Court